

**CHAPTER cxxxiii.**

An Act to transfer to and vest in the Council of the urban district of Risca the undertaking of the Western Valleys (Monmouthshire) Water and Gas Company to sanction and confirm the construction of existing water-works and to authorise the Council to supply water and gas and for other purposes. [16th August 1909.]

WHEREAS the district of Risca in the county of Monmouth is an urban district within the meaning of the Local Government Act 1894 and is under the management and control of the Risca Urban District Council (in this Act called "the Council") :

And whereas under and by virtue of the Western Valleys (Monmouthshire) Water Act 1891 (herein-after called "the Act of 1891") the Western Valleys (Monmouthshire) Water Company were incorporated and have constructed waterworks and are supplying water within the urban district of Risca (in this Act called "the district") and part of the adjoining district of Mynyddislwyn :

And whereas under and by virtue of the Western Valleys (Monmouthshire) Water and Gas Act 1892 (herein-after called "the Act of 1892") the name of the said company was changed to the Western Valleys (Monmouthshire) Water and Gas Company (in this Act called "the company") and the undertaking of the Risca and Pontymister Gas Company was transferred to and vested in the company and the company are now supplying gas within the district :

Endowments Act 1895 and (7) the Edinburgh Merchant Company A.D. 1909.
Act 1898: —

And whereas the said endowment of George Watson's Hospital is held and administered under and in virtue of the provisions of (1) trust-disposition and settlement of George Watson merchant burgess of Edinburgh dated the 9th and codicil thereto dated the 15th both days of February both registered in the books of Council and Session the 9th day of April all in the year 1723 as also codicil to the said trust disposition and settlement dated the 11th day of February 1723 and registered in the books of Council and Session the 8th day of April 1909 (2) declaration by the original trustees dated the 1st day of May 1724 containing the fundamental articles of the said George Watson's Hospital (3) Act of Parliament (private) 15 Vict. cap. 7 (4) Provisional Order dated the 3rd day of June 1870 made under the powers contained in the said Endowed Institutions (Scotland) Act 1869 (5) statutes and rules made by the said Company of Merchants of the City of Edinburgh and governors of the said George Watson's Hospital in 1883 (6) scheme made under the said Educational Endowments (Scotland) Act 1882 approved by Her late Majesty by Order in Council dated the 17th day of November 1888 as amended by Ordinance No. 24 (Edinburgh No. 5 Tenure of the Chair of Commercial and Political Economy) of the commissioners under the Universities (Scotland) Act 1889 dated the 25th day of January and approved by Her late Majesty by Order in Council the 26th day of June both in the year 1893 and by interlocutor of the Lords of Council and Session (First Division) dated the 26th day of May 1904 on petition by the governors of the said hospital for alteration of the scheme (7) the Edinburgh Merchant Company Endowments Act 1895 and (8) the Edinburgh Merchant Company Act 1898:

And whereas the said endowment of Daniel Stewart's Hospital is held and administered under and in virtue of the provisions of (1) trust disposition and settlement of Daniel Stewart of the Exchequer Edinburgh dated the 3rd day of May 1811 and codicil thereto dated the 13th day of February 1813 both registered in the said books of Council and Session the 7th day of June 1814 (2) Act of Parliament (private) 23 and 24 Vict. cap 2 (3) Provisional Order dated the 3rd day of June 1870 made under the powers contained in the said Endowed Institutions (Scotland) Act 1869 (4) statutes and rules made by the governors of the

A.D. 1909. said Daniel Stewart's Hospital in 1883 (5) scheme made under the said Educational Endowments (Scotland) Act 1882 approved by Her late Majesty by Order in Council dated the 17th day of November 1888 as amended by the said Ordinance No. 24 (Edinburgh No. 5 Tenure of the Chair of Commercial and Political Economy) of the commissioners under the Universities (Scotland) Act 1889 and by interlocutor of the Lords of Council and Session (First Division) dated the 26th day of May 1904 on petition by the governors of the said hospital for alteration of the scheme (6) the Edinburgh Merchant Company Endowments Act 1895 and (7) the Edinburgh Merchant Company Act 1898 :

And whereas the said endowment of James Gillespie's Hospital and Free School is held and administered under and in virtue of the provisions of (1) trust disposition and settlement by James Gillespie of Spylaw dated the 16th day of April 1796 and registered in the said books of Council and Session the 12th day of April 1797 (2) Royal Charter incorporating the governors of the said James Gillespie's Hospital and Free School dated the 19th day of April 1801 (3) Provisional Order dated the 3rd day of June 1870 made under the powers contained in the said Endowed Institutions (Scotland) Act 1869 (4) statutes and rules made by the governors of the said James Gillespie's Hospital and Free School in 1883 (5) scheme made under the said Educational Endowments (Scotland) Act 1882 approved by Her late Majesty by Order in Council dated the 17th day of November 1888 (6) the Edinburgh Merchant Company Endowments Act 1895 and (7) the Edinburgh Merchant Company Act 1898 :

And whereas the said George Grindlay's Endowment is held and administered under and in virtue of the provisions of (1) trust disposition and settlement of George Grindlay merchant in Edinburgh a member and some time an assistant of the said Company of Merchants dated the 18th day of June and registered in the sheriff court books of Edinburgh the 15th day of August both in the year 1801 (2) disposition by the trustees of the said George Grindlay in favour of the master twelve assistants and treasurer of the said Company of Merchants in trust dated the 24th and registered in the said books of Council and Session the 26th both days of February 1812 and (3) the Edinburgh Merchant Company Act 1898 :

And whereas the said William Watherston's Endowment is held and administered under and in virtue of the provisions of

(1) deed of gift by William Watherston builder in Edinburgh a member and sometime an assistant of the said Company of Merchants in favour of the said Company (but under the sole management and administration of the master treasurer and assistants of the said Company for the time being) in trust dated the 2nd and recorded in the General Register of Sasines for the county of Edinburgh for publication and also in the said books of Council and Session for preservation on the 18th both days of July 1889 (2) statutes and byelaws or rules referred to in the said deed of gift made and subscribed by the said William Watherston on the 2nd and recorded in the said Register of Sasines and the said books of Council and Session on the 18th day of July 1889 (3) minute of alteration and amendment of the said statutes and byelaws or rules subscribed by the said William Watherston and sealed and subscribed for and on behalf of the said Company of Merchants for themselves and as trustees dated the 3rd 12th and 13th and recorded in the said Register of Sasines and the said books of Council and Session on the 20th all days of February 1890 and (4) the Edinburgh Merchant Company Act 1898: A.D. 1909.

And whereas each of the said endowments is held and administered by a separate governing body as follows that is to say (1) the Merchant Maiden Hospital by a governing body consisting of the master treasurer and two assistants of the said Company of Merchants nine former assistants of and elected by the said Company five members of the town council of the city of Edinburgh three ministers of the said city and suburbs the Earl of Mar and the honorary treasurer of the said hospital (2) George Watson's Hospital by a governing body consisting of the master treasurer and twelve assistants of the said Company of Merchants five members of the said town council the minister of the old church of the said city and the honorary treasurer of the said George Watson's Hospital (3) Daniel Stewart's Hospital by a governing body consisting of the master treasurer and twelve assistants of the said Company of Merchants (4) James Gillespie's Hospital and Free School by a governing body consisting of the master treasurer and twelve assistants of the said Company of Merchants five members of the said town council the minister of St. Stephen's Church and the minister of Tolbooth Church both in the said city (5) George Grindlay's Endowment by a governing body consisting of the master treasurer and twelve assistants of the said Company of Merchants and (6) William Watherston's

A.D. 1909. Endowment by a governing body also consisting of the master treasurer and twelve assistants of the said Company of Merchants :

And whereas the master of the said Company of Merchants is preses of the governing body of each of the said endowments and the said endowments are closely related to one another in administration and some of them also in their educational and the others in their charitable work :

And whereas there was established and incorporated under the Edinburgh Merchant Company Endowments Act 1895 a general board in connexion with the said endowments of the Merchant Maiden Hospital George Watson's Hospital Daniel Stewart's Hospital and James Gillespie's Hospital and Free School called "The Merchant Company Endowments Board" consisting of fifteen governors of the said endowments as follows that is to say the master of the said Company of Merchants ex officio two representatives elected from among the said ministers four representatives elected from among the said town council governors and eight representatives elected from among the governors other than the said ministers and the said town council governors and the master of the said Company of Merchants is chairman of the said Endowments Board :

And whereas there was established under the said Edinburgh Merchant Company Act 1898 a joint committee in connexion with the said George Grindlay's Endowment the said William Watherston's Endowment the said Company of Merchants and the widows' fund of the said Company called "The Merchant Company Joint Committee" consisting of six members as follows that is to say the master and the treasurer of the said Company ex officio and one member elected respectively from among (1) the master treasurer and assistants of the said Company (2) the trustees of the widows' fund of the said Company (3) the governors of the said George Grindlay's Endowment and (4) the governors of the said William Watherston's Endowment and the master of the said Company of Merchants is chairman of the said joint committee :

And whereas there were also established under the said Edinburgh Merchant Company Endowments Act 1895 (1) a common fund applicable to all the endowments of the said Merchant Maiden Hospital George Watson's Hospital Daniel Stewart's Hospital and James Gillespie's Hospital and Free School

A.D. 1909.

consisting of the excess of revenue over expenditure of the said endowments or any of them (2) a superannuation fund for the payment of superannuation allowances to teachers and other employees in the schools of the said endowments of the said hospitals and free school and any officers and other employees in connexion with the administration of the said endowments and (3) a reserve fund for the said endowments of the said hospitals and free school which common fund superannuation fund and reserve fund are held and applied by the said Merchant Company Endowments Board in the manner and for the purposes provided in the Edinburgh Merchant Company Endowments Act 1895:

And whereas the governing body of the said endowment of James Gillespie's Hospital and Free School found it necessary to cease on the seventeenth day of July one thousand nine hundred and eight to carry on the school in connexion with the said endowment known as James Gillespie's School and it is expedient that provision be made for applying to other educational purposes of the Merchant Company endowments the portion of the endowment of the said hospital and free school hitherto required for the carrying on of the said school and the school building site thereof and ground in connexion therewith (or the sum to be realised from the sale thereof) and for an equitable arrangement of the interests of the teachers employed in the said school as contributors to the said superannuation fund at the date when the school ceased to be carried on by the said governing body:

And whereas certain of the officers and other employees of the governing body of James Gillespie's Hospital and Free School are contributors to the said superannuation fund:

And whereas under this Order the endowment of James Gillespie's Hospital and Free School will be administered by the charities board and the superannuation fund will be administered by the education board and such officers and other employees of the said hospital and free school will not be eligible to continue as contributors to the superannuation fund:

And whereas it is expedient that compensation should be paid as in this Order provided to such officers and other employees out of the said superannuation fund in respect of their interest in the said fund:

And whereas it is expedient that the said endowments and funds which are educational that is to say the Merchant Maiden

A.D. 1909. Hospital George Watson's Hospital Daniel Stewart's Hospital George Grindlay's Endowment and the said common fund and reserve fund should be amalgamated in one trust and transferred to and managed and administered by one governing body and that the said superannuation fund should also be transferred to and separately managed and administered by the same governing body and that the said endowments which are charitable that is to say James Gillespie's Hospital and Free School and William Watherston's Endowment should be transferred to and managed and administered by another governing body :

And whereas it is expedient that the said existing governing bodies and the Merchant Company Endowments Board and (as regards the said George Grindlay's and William Watherston's Endowments) the Merchant Company Joint Committee should be dissolved and their powers of management and administration should (as consolidated and amended by this Order) be conferred on the governing bodies respectively constituted by this Order and that the additional powers herein-after mentioned should be conferred on the governing bodies so constituted :

And whereas the governors of the said Merchant Maiden Hospital are superiors of the town of Peterhead and proprietors of the estates of Peterhead and others in the county of Aberdeen :

And whereas by contract dated the 7th and 16th and recorded in the General Register of Sasines the 22nd all days of December 1774 and registered in the books of Council and Session the 17th day of April 1775 entered into between the governors of the said Merchant Maiden Hospital and the trustees for the feuars of the said town of Peterhead holding under the said governors the said governors disposed to the said trustees for the feuars certain parts and pertinents of the commonities of Peterhead lying about the said town and that for the public good and utility of the town subject to the conditions and restrictions contained in the said contract and inter alia that the said commonities should not be feued sold disposed or alienated by the said disponees in time coming nor any buildings erected thereon except certain erections then existing :

And whereas in consequence of the increase in the trade of the town and harbours of Peterhead it is expedient and would be of public advantage and convenience that the conditions and

restrictions contained in the said contract should be modified or altered as herein-after in this Order provided : A.D. 1909.

And whereas under the Peterhead Harbours Act 1873 the preses of the governors of the said Merchant Maiden Hospital for the time being is an appointed trustee of the said harbours and chairman of the trustees as in the said Act provided and it is expedient that the chairman of the education board constituted by this Order should be one of and chairman of the trustees of the said harbours in the room and place of the preses of the governors of the said hospital and that the said Act should be amended accordingly :

And whereas under the constitution adopted at the annual general meeting of the feuars of the town of Peterhead held at Peterhead on the thirteenth day of April one thousand eight hundred and eighty-one the preses of the governors of the Merchant Maiden Hospital for the time being is a trustee and a member of the committee of managers of the said feuars and chairman of the trustees and committee of managers of the said feuars and it is expedient that the chairman of the education board constituted by this Order should be one of and chairman of the trustees and committee of managers of the said feuars in the room and place of the preses of the governors of the said hospital :

And whereas under the Bathgate Academy Provisional Order granted under the powers contained in the said Endowed Institutions (Scotland) Act 1869 and dated the 29th day of June 1871 the preses of the governors of the said Daniel Stewart's Hospital and on his ceasing to be preses one of the governors of that hospital to be elected annually by such governors to represent them is appointed one of the trustees of the said academy and it is expedient that in room of the preses of the said hospital the chairman of the education board constituted by this Order should be a trustee of the said academy and that the said Order should be amended accordingly :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

1. This Order may be cited as the *Edinburgh Merchant Company Endowments Order 1909.* Short title.

A.D. 1909.

Order
divided into
Parts.

2. This Order is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Educational Endowments.

Part III.—Superannuation Fund.

Part IV.—Charitable Endowments.

Part V.—Elections and Meetings.

Part VI.—Finance.

Part VII.—Miscellaneous.

PART I.

PRELIMINARY.

Interpreta-
tion.

3. The following words and expressions in this Order shall have the respective meanings herein-after assigned to them unless there be something in the subject or context repugnant to such construction (that is to say):—

“Merchant Company” means the Company of Merchants of the City of Edinburgh incorporated by Royal Charter in the year 1681 and re-incorporated by the Edinburgh Merchant Company Act 1898;

“The educational endowments” mean and include the Merchant Maiden Hospital George Watson’s Hospital Daniel Stewart’s Hospital and George Grindlay’s Endowment and also the common fund and reserve fund established under the Edinburgh Merchant Company Endowments Act 1895;

“The charitable endowments” mean and include James Gillespie’s Hospital and William Watherston’s Endowment;

“The education board” means the Merchant Company Education Board established and incorporated by this Order;

“The charities board” means the Merchant Company Charities Board established and incorporated by this Order;

“The said boards” means the education board and the charities board;

“School” or “schools” means any school or schools of and under the management and administration of the education board;

“The superannuation fund” means the Merchant Company A.D. 1909.
Endowments Superannuation Fund established under the
Edinburgh Merchant Company Endowments Act 1895
as reconstituted and amended and transferred by this
Order to the education board and designated the
Merchant Company Schools Superannuation Fund;

“Actuary” means a Fellow of the Faculty of Actuaries in
Scotland incorporated by Royal Charter;

“The department” means the Scotch Education Department;

“The appointed day” means the first Thursday of December
1909;

“The Act of 1895” means the Edinburgh Merchant Company
Endowments Act 1895;

“The Act of 1898” means the Edinburgh Merchant Company
Act 1898.

4. This Order shall except where otherwise provided come Date of
into operation on the date of the passing of the Act confirming commence-
the same which date is herein-after referred to as the commence- ment of
ment of this Order. Order.

5. From and after the appointed day the Acts orders and Repeal of
schemes referred to in Schedule A of this Order are hereby Acts &c.
repealed to the extent mentioned in the third column of the
said schedule:

Provided that all purchases sales conveyances assignments
feus leases mortgages deeds bonds charters contracts agreements
securities and other acts and things made done granted entered
into executed or instituted under or by virtue or in consequence of
or confirmed by any Act order or scheme hereby repealed or with
reference to any of the purposes thereof shall notwithstanding
the said repeal be and continue as good valid and effectual to all
intents and purposes as if this Order had not been confirmed.

6.—(a) The governing bodies respectively of the educational Dissolution
endowments and the charitable endowments; of governing
bodies.

(b) The Merchant Company Endowments Board constituted
under the Act of 1895; and

(c) The Merchant Company Joint Committee constituted under
the Act of 1898;

A.D. 1909. — shall respectively continue in office and shall have and possess and be entitled to exercise their existing powers until the appointed day on which day the said governing bodies respectively and the said Merchant Company Endowments Board and (as regards the said George Grindlay's Endowment and William Watherston's Endowment) the said Merchant Company Joint Committee shall be dissolved and shall cease to exist.

PART II.

EDUCATIONAL ENDOWMENTS.

General Provisions.

Amalgama-
tion of en-
dowments
and trans-
ference and
vesting of
property.

7. The endowments of the Merchant Maiden Hospital George Watson's Hospital and Daniel Stewart's Hospital George Grindlay's Endowment and the common fund and reserve fund established under the Act of 1895 shall on the appointed day be and are hereby amalgamated and shall thenceforth form one endowment which shall be held managed and administered by the education board under and subject to the provisions of this Order and on and after the appointed day all the estates heritable and moveable property rights funds securities powers functions and duties that may belong and attach to or may be vested in or may subsequently accrue to the said Merchant Maiden Hospital George Watson's Hospital Daniel Stewart's Hospital George Grindlay's Endowment and the said common fund and reserve fund respectively by whomsoever held or in whomsoever vested (except the heritable property and pertinents thereof situated in Hanover Street Edinburgh held in trust by the Merchant Company under the Act of 1898 for behoof of the Merchant Company and of the other trusts of and connected with the Merchant Company according to their several interests therein and occupied partly as the hall and offices of the Merchant Company and the said other trusts and partly by their tenants) shall subject to the provisions of the Act of 1898 so far as not repealed by this Order and this Order be and are hereby transferred to and vested in the education board for the purposes of this Order so far as these relate to the educational endowments without the necessity of any new conveyance transfer assignation or other instrument.

Constitution
of education
board.

8. The education board shall subject to the provisions of this Order consist of twenty-four members constituted and elected as follows (that is to say):—

- (1) The master the treasurer and the twelve assistants of the Merchant Company for the time being ex officio;

(2) The Lord Provost of the City of Edinburgh ex officio and four other members of and to be elected by the town council of the said city ; A.D. 1909.

(3) Two ministers of the Edinburgh Presbytery of the Church of Scotland to be elected by the said presbytery ; and

(4) Three persons to be co-opted by the education board.

9. The first and all subsequent members of the education board shall be and are hereby incorporated under the name of "The Merchant Company Education Board" and under that name shall be a body corporate with perpetual succession and a common seal and may sue and be sued and may purchase acquire hold and dispose of lands and other property heritable and moveable for the purposes of this Order so far as these relate to the educational endowments and shall have all the other privileges of a body corporate. Incorporation of education board.

10.—(a) The benefits to foundationers whether presented or elected of the Merchant Maiden Hospital ; Preferable ranking of certain interests.

(b) The benefits to foundationers of George Watson's Hospital ;

(c) The benefits to foundationers of Daniel Stewart's Hospital ; and

(d) The endowment of the Chair of Commercial and Political Economy and Mercantile Law in the University of Edinburgh to the extent of the annual payments guaranteed by the deed of endowment thereof ;

shall together rank preferably upon the funds of the education board.

11. The education board may without prejudice to any powers conferred by any general Act applicable to education in Scotland relating to retiring allowances grant retiring allowances to the headmaster or headmistress or lady superintendent of any of the schools who were appointed prior to the establishment of the superannuation fund under the Act of 1895 by any of the governing bodies dissolved by this Order or their predecessors provided that such headmaster or headmistress or lady superintendent has held office as such continuously in any one or more of the schools for a period of at least fifteen years Provided further that for the purposes of this section any transfer made Power to grant retiring allowances.

A.D. 1909. by the education board after the appointed day from one school to another of any such headmaster or headmistress or lady superintendent shall be deemed to be an appointment made prior to the establishment of the superannuation fund under the Act of 1895. Provided also that no such retiring allowance shall along with the superannuation allowance which such headmaster or headmistress or lady superintendent may be entitled to receive from the superannuation fund exceed two-thirds of the salary of such headmaster headmistress or lady superintendent for the year immediately preceding retiral.

Annual
grant to
super-
annuation
fund.

12. The education board shall on and after the first day of February 1910 pay to the superannuation fund from the income of the educational endowments an annual grant or contribution equal to the total contribution to the superannuation fund by the contributors thereto during the immediately preceding financial year of the said fund but such annual grant or contribution shall not exceed five per cent. of the total amount of the salaries or other remuneration of such contributors.

James Gillespie's School.

Property and
endowment
of James
Gillespie's
school.

13.—(a) The buildings and the site of James Gillespie's School and the playground and pertinents or the net sum realised from the sale thereof together with any interest thereon accrued as at the date of transfer ;

(b) The furniture and equipment of the said school or the net sum realised from the sale thereof together with any interest thereon accrued as at the date of transfer ;

(c) The capitalised annual endowment of the said school ascertained as herein-after mentioned ; and

(d) Any balance standing at the credit of the account of the said school at the appointed day together with any interest thereon accrued as at the date of transfer ;

when transferred and paid over by the charities board to the education board as herein-after provided shall form part of the capital stock and fund of the education board but under burden of payment by the education board to the headmaster and any teachers of the said school who were in office when the said school ceased to be carried on by the governors of James Gillespie's Hospital and Free School of any annual retiring allowances granted to him and them by the said governors.

[9 EDW. 7.]

Edinburgh Merchant Company
Endowments Order Confirmation Act, 1909.

[Ch. cxi.]

Edinburgh University Chair.

A.D. 1909.

14. The education board shall in lieu of the governors of George Watson's Hospital and Daniel Stewart's Hospital maintain the endowment of the chair in the University of Edinburgh founded by the governors of the said hospitals and called "The Chair of Commercial and Political Economy and Mercantile Law" for the teaching of the principles of commerce finance political economy and mercantile law in accordance with and subject to the provisions of the deed of endowment by the said governors in favour of the Senatus Academicus of the University of Edinburgh dated 4th May and registered in the books of Council and Session 14th June 1871 and the Ordinance No. 24 (Edinburgh No. 5 Tenure of the Chair of Commercial and Political Economy) of the commissioners under the Universities (Scotland) Act 1889 dated the twenty-fifth day of January and approved by Her late Majesty by Order in Council the twenty-sixth day of June both in the year one thousand eight hundred and ninety-three altering the tenure of the said chair Provided that as heretofore the appointment of the professor to the said chair shall be made by the curators of the said university and the master and treasurer of the Merchant Company for the time being Provided also that the education board in lieu of the governors of the said hospitals shall have and may exercise all the rights and privileges which the said governors at present possess or may exercise under the said deed of endowment and the said ordinance and notwithstanding anything contained in the said deed of endowment the education board may award and dispose of the twelve free class tickets provided under the said deed of endowment in such way and manner and to such persons as the education board may from time to time determine.

Endowment
of chair in
University
of Edin-
burgh.

Peterhead Feuars' Lands.

15. With respect to the lands herein-after in this section specified (and referred to as "the specified lands") forming parts of the lands at Peterhead belonging in superiority to the governors of the Merchant Maiden Hospital transferred by this Order to the education board and originally disposed in feu to trustees for themselves and the community of the feuars of Peterhead by contract entered into between the governors of the said hospital and the said trustees dated the seventh and sixteenth and recorded

Feuing &c.
of Peterhead
feuars'
lands.

A.D. 1909. in the General Register of Sasines the twenty-second all days of December one thousand seven hundred and seventy-four and also registered in the books of Council and Session the seventeenth day of April one thousand seven hundred and seventy-five the following provisions shall notwithstanding anything to the contrary contained in the said contract or in any deed or instrument which has followed thereon have effect (that is to say):—

(1) The specified lands are the following (that is to say):—

(A) Raemoss Park extending to fourteen acres two roods or thereby;

(B) Buchanhaven Park extending to seven acres one rood or thereby;

(C) The middle inclosure lying betwixt the Geddle and the Ive extending to six acres two roods or thereby; and

(D) The southern inclosure lying betwixt the Ive and the Ronheads Park extending to sixteen acres or thereby;

but excepting always from the specified lands any parts of the same which since the dates of the said contract have been sold and disposed:

(2) The specified lands are delineated and coloured pink on a plan thereof signed by the Right Honourable the Lord Pentland Secretary for Scotland a copy of which plan shall be deposited at (1) the office of the Secretary for Scotland Whitehall London (2) the office of the sheriff clerk of the county of Aberdeen at Peterhead and (3) the office of the education board:

(3) (A) Subject to the provisions of this section the trustees and managers of the said community of feuars may feu the specified lands or any part thereof and their vassals may erect and maintain buildings thereon but only for the purposes following (that is to say):—

For carrying on the business of fish curing or other industry Provided that such buildings shall unless otherwise agreed between the education board and the trustees and managers of the said

community of feuars be used exclusively for these purposes ; A.D. 1909.

For fishermen's houses Provided that such fishermen's houses as may be erected under the provisions of this section shall not exceed two storeys in height and no such house shall exceed in value five hundred pounds Provided further that the extent of the specified lands on which fishermen's houses may be erected as aforesaid (including garden or other ground attached thereto) shall not exceed eight acres except with the previous consent in writing of the education board :

- (B) No buildings of any kind shall be erected in Raemoss Park without the previous consent in writing of the education board until the remainder of the specified lands has been feued :
- (C) Before any part of the specified lands shall be feued the trustees and managers of the said community of feuars shall submit plans to the education board showing the lines of the proposed roads and drains and such plans shall have regard to and fit in as nearly as may be with the feuing plans of the adjacent lands belonging in property to the education board :
- (D) The education board shall not incur any liability either to the trustees and managers of the said community of feuars or to the town council of Peterhead in connexion with the laying out of the specified lands or the formation of the roads and drains and the education board shall have a right of servitude so far as they deem it necessary through any lands of the said community of feuars for the drainage of any adjacent lands of the education board :
- (E) No part of the specified lands shall except with the consent in writing of the education board be feued at a less rate of yearly feu duty than fifteen pounds per acre No grassum or duplicand of feu duty shall be charged in connexion with any of such feus and an obligation shall be imposed in the feu charters

A.D. 1909.

or other deeds which may be granted for the payment by the disponees of rates and taxes :

- (F) The education board and their successors and assignees shall be entitled to payment of one-third part or share of the yearly feu duty payable in respect of every feu which may be granted in virtue of this section Provided that before the division of such feu duty into shares for the purpose of this section a deduction shall be made from such feu duty at the rate of three pounds per acre being the agreed amount of the present net yearly letting value of the land :
- (G) The trustees and managers of the said community of feuars may with the consent in writing of the education board excamb such portions of the specified lands on such terms and conditions as may be agreed on :
- (H) The trustees and managers of the said community of feuars may let such parts or portions of the specified lands with power to erect buildings thereon to be used only for the purpose of carrying on the business of fish curing or other industry subject to the condition that the education board and their foresaids shall in every such case of lease or let be entitled to payment of one-third part or share of the yearly rent payable in respect of any such let Provided that before division is made of such rent into shares for the purpose of this section a deduction shall be made from such rent at the said rate of three pounds per acre being the agreed amount of the present net yearly letting value of the land :
- (I) The free yearly revenue of the trustees and managers of the said community of feuars derived from the specified lands or any part thereof after deducting the sums payable to the education board or their foresaids shall be applied by the trustees and managers of the said community of feuars exclusively for the public good and utility of the town and harbours of Peterhead in accordance with the said contract in that behalf and according to the use and wont of the trustees and managers of the said community of feuars :

- (j) No feus or lets of any part of the specified lands under this section shall be granted and no buildings shall be erected thereon until the trustees and managers of the said community of feuars have with the consent of the education board executed a declaration of trust or other instrument so as to give effect to and carry out the provisions and requirements of this section and to secure the interests of the education board and their foresaids under this section and until such declaration of trust or other instrument has been duly recorded in the appropriate registers for preservation and publication : A.D. 1909.
- (k) The trustees and managers of the said community of feuars shall annually on the first day of March or within one month thereafter commencing as at the first day of March one thousand nine hundred and ten forward to the secretary of the education board a full and complete statement of their accounts for the year or period preceding such date showing the amount payable under the provisions of this section to the education board or their foresaids and shall forthwith pay to them any sum which may be due :
- (4) If any dispute or difference shall arise between the education board and the trustees and managers of the said community of feuars as to any deeds or instruments which may be required to carry out the purposes of this section or as to the terms of any such deeds or instruments such dispute or difference shall be and is hereby referred to the professor of conveyancing in the University of Edinburgh for the time being whose decision shall be final and shall be binding on the education board and the trustees and managers of the said community of feuars :
- (5) The education board and the trustees and managers of the said community of feuars may enter into agreements or other deeds or instruments for carrying out and giving effect to the purposes of this section ; and
- (6) Subject to the provisions herein-before in this section contained the said contract shall continue of as full

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force and effect as if this Order had not been confirmed and all rights not inconsistent with the provisions of this section competent to the education board or to the trustees and managers of the said community of feuars are hereby reserved.

Foundationers of the Merchant Maiden Hospital.

Presentation
of founda-
tioners by
patrons.

16. Subject to the provisions of this Order for the acquisition by the education board of any rights of presentation or patronage nothing in this Order contained shall prejudice the right of the patrons set forth in the Schedule B. of this Order to present or appoint girls to the foundation of the Merchant Maiden Hospital and such foundationers shall subject to the provisions of this Order be maintained and educated by the education board.

Power to
purchase
rights of
presentation.

17. The education board may by agreement purchase from patrons all or any of the rights of presentation or patronage referred to in the Schedule B. of this Order and on the education board acquiring such rights or any of them they may in their discretion either abolish or exercise the same.

Founda-
tioners to be
elected by
education
board.

18. Whereas the governors of the Merchant Maiden Hospital have and now exercise the right of electing not more than twenty girls to be maintained and educated from the funds or on the foundation of the Merchant Maiden Hospital which right of election is under the provisions of this Order transferred to the education board Therefore the said girls now elected and to be elected shall subject to the provisions of this Order be maintained and educated by the education board.

Special
qualification
of elected
founda-
tioners.

19. The foundationers who may be elected by the education board shall be of the following classes (that is to say):—

- (1) The daughters and granddaughters of members of the Merchant Company:
- (2) The daughters and granddaughters of ministers of the Church of Scotland members of the Presbytery of Edinburgh with a charge in the said city or the town of Leith:
- (3) The daughters and granddaughters of governors of the Merchant Maiden Hospital:

- (4) The daughters and granddaughters of burgesses and guild brethren of the City of Edinburgh not admitted members of the Merchant Company but admitted burgesses and guild brethren of the said city prior to the 1st day of January 1881: A.D. 1909.

Provided that in electing the foundationers the education board shall give a preference to the persons designated in subsections (1) (2) and (3) of this section.

20. Every foundationer whether presented or elected shall possess the following qualifications (that is to say):— General qualifications of foundationers.

- (1) She shall not be under nine nor above sixteen years of age as at the 1st day of October of the year in which the presentation is sustained or the election made by the education board as the case may be;
- (2) She shall pass such an entrance examination suitable to her age as will satisfy the education board;
- (3) The state of her health shall be certified by the medical officer of the education board to be satisfactory; and
- (4) Her admission to the foundation shall not in the opinion of the education board be prejudicial to the interests of the school at which her attendance would be required.

21. Every foundationer whether presented or elected shall be maintained and educated by the education board for such number of school sessions one or more as the board may fix Terms of foundations.
Provided that the board—

- (1) May extend her original term on the foundation for one or more sessions if she shall obtain a certificate or renewed certificate of high merit from the headmaster or headmistress of the school she attends; and
- (2) May remove any foundationer from the foundation at any time should she in their opinion—
 - (A) fail to make reasonable educational progress;
 - or
 - (B) conduct herself so as to warrant her removal;
 - or
 - (C) otherwise be undesirable as a pupil at the school.

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Benefits
to founda-
tioners.

22. The education board shall be held to have discharged the obligation on them to maintain and educate any presented or elected foundationer by—

- (1) paying on her behalf at such times and in such manner as they may consider most suitable such allowance per school session as they may consider proper from time to time for board clothing and school books Provided that the education board may differentiate such allowance in the case of foundationers living with parents or grandparents and foundationers living with persons other than parents or grandparents ;
- (2) educating her free at one of the schools of the education board to be selected by them ; and
- (3) paying her on leaving the foundation such a sum for outfit allowance as the education board may consider suitable Provided that in the case of each foundationer presented by the Earl of Mar such sum shall not be less than the present allowance of fourteen pounds six shillings and eightpence.

Foundationers of George Watson's Hospital.

Founda-
tioners to be
elected by
education
board.

23. Whereas the governors of George Watson's Hospital have and now exercise the right of electing not more than forty-five boys to be maintained and educated from the funds or on the foundation of George Watson's Hospital which right of election is under the provisions of this Order transferred to the education board Therefore the said boys now elected or to be elected shall subject to the provisions of this Order be maintained and educated by the education board.

Special
qualifications
of founda-
tioners.

24. The foundationers shall be of the following classes (that is to say) :—

- (1) The sons and grandsons of members of the Merchant Company :
- (2) The sons and grandsons of ministers of the old church Edinburgh quoad sacra :
- (3) The sons and grandsons of burgesses and guild brethren of the City of Edinburgh not admitted members of the Merchant Company but admitted burgesses and guild brethren of the said city prior to 1st January 1881 :

Provided that in electing the foundationers the education board shall give a preference to the persons designated in subsections (1) and (2) of this section. A.D. 1909.

25. Every foundationer shall possess the following qualifications (that is to say):— General qualifications of foundationers.

- (1) He shall not be under nine nor above fourteen years of age as at the first day of October of the year of election to the foundation;
- (2) He shall pass such an entrance examination suitable to his age as will satisfy the education board;
- (3) The state of his health shall be certified by the medical officer of the education board to be satisfactory; and
- (4) His admission to the foundation shall not in the opinion of the education board be prejudicial to the interests of the school at which his attendance would be required.

26. Every foundationer shall be maintained and educated by the education board for such number of school sessions one or more as the board may fix Terms of foundations. Provided that the board—

- (1) may extend his original term on the foundation for one or more sessions if he shall obtain a certificate or renewed certificate of high merit from the headmaster of the school he attends; and
- (2) may remove any foundationer from the foundation at any time should he in their opinion—
 - (A) fail to make reasonable educational progress; or
 - (B) conduct himself so as to warrant his removal; or
 - (C) be otherwise undesirable as a pupil at the school.

27. The education board shall be held to have discharged the obligation on them to maintain and educate each foundationer by— Benefits to foundationers.

- (1) paying on his behalf at such times and in such manner as they may consider most suitable such allowance per school session as they may consider proper from time to time for board clothing and school books Provided that the education board may differentiate such allowance in the case of foundationers living

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with parents or grandparents and foundationers living with persons other than parents or grandparents ;

- (2) educating him free at one of the schools of the education board to be selected by them ; and
- (3) paying him on leaving the foundation such a sum for outfit allowance as the education board may consider suitable :

Provided that the education board may if they think fit and on such conditions as they think proper also pay to any foundationer after he leaves the foundation—

- (a) a sum not exceeding fifty pounds in yearly instalments either as an apprentice fee or to enable him to prosecute his studies for a literary or scientific profession ; or
- (b) a sum not exceeding twenty-five pounds to enable him to settle abroad.

Foundationers of Daniel Stewart's Hospital.

Founda-
tioners to be
elected by
education
board.

28. Whereas the governors of Daniel Stewart's Hospital have and now exercise the right of electing not more than twenty boys resident in the City of Edinburgh or town of Leith the sons of honest industrious and well-behaved parents whose circumstances in life do not enable them suitably to support and educate their children at other schools to be maintained and educated from the funds or on the foundation of Daniel Stewart's Hospital which right is under the provisions of this Order transferred to the education board Therefore the said boys not exceeding twenty in number now elected or to be elected shall subject to the provisions of this Order be maintained and educated by the education board.

General
qualifica-
tions of
founda-
tioners.

29. Every foundationer shall possess the following qualifications (that is to say):—

- (1) He shall not be under nine nor above fourteen years of age as at the first day of October of the year of election to the foundation ;
- (2) He shall pass such an entrance examination suitable to his age as will satisfy the education board ;
- (3) The state of his health shall be certified by the medical officer of the education board to be satisfactory ; and

- (4) His admission to the foundation shall not in the opinion of the education board be prejudicial to the interests of the school at which his attendance would be required. A.D. 1909.

30. Every foundationer shall be maintained and educated by the education board for such number of school sessions one or more as the board may fix Provided that the board— Terms of foundations.

- (1) may extend his original term on the foundation for one or more sessions if he shall obtain a certificate or renewed certificate of high merit from the headmaster of the school he attends; and

- (2) may remove any foundationer from the foundation at any time should he in their opinion—

(A) fail to make reasonable educational progress; or

(B) conduct himself so as to warrant his removal; or

(c) be otherwise undesirable as a pupil at the school.

31. The education board shall be held to have discharged the obligation on them to maintain and educate each foundationer by— Benefits to foundationers.

- (1) paying on his behalf at such times and in such manner as they may consider most suitable such allowance per school session as they may consider proper from time to time for board clothing and school books Provided that the education board may differentiate such allowance in the case of foundationers living with parents or grandparents and foundationers living with persons other than parents or grandparents;

- (2) educating him free at one of the schools of the education board to be selected by them.

Schools.

32.—(1) The education board shall while and so long as they may find it necessary or expedient and subject to the provisions of this Order maintain the four day schools in the City of Edinburgh known as the Edinburgh Ladies' College George Watson's College for Boys George Watson's Ladies' College and Daniel Stewart's College either in the existing buildings or in such other buildings as they may think proper and they may establish and maintain Schools to be maintained acquisition &c. of land and buildings.

A.D. 1909. additional day schools and use such names as they think fit to designate the schools Provided that the name "George Watson" shall be used in the designation of one of the schools for boys and one of the schools for girls and the name "Daniel Stewart" shall be used in the designation of another of the schools for boys.

(2) The education board may alter improve and enlarge the existing and any future school buildings and may purchase feu lease or otherwise acquire and hold land and buildings for such day schools as may in the judgment of the education board from time to time be required and may build on land so acquired such day schools as may by the education board be thought necessary and may sell feu or lease the existing and any future school buildings and the lands therewith connected.

Admission
of pupils.

33. Each school shall subject to the provisions of this Order be open to boys or girls or to boys and girls (as the education board may think fit) who in the opinion of the education board are of good health and character and who pass an entrance examination to the satisfaction of the headmaster or headmistress of the school and if the number of applicants be greater than can be admitted to any school or class in a school the education board may determine the order of admission in any manner they think fit.

Subjects to
be taught.

34. The subjects to be taught in the schools or in any of them shall be such as the education board may from time to time determine with the approval of the department.

Fees.

35. The education board may charge such fees at all or any of the schools as they may from time to time consider suitable having regard to the cost of education the revenue from the endowment and the amount of grants from imperial or local sources Provided that the education board may modify to such extent as they think fit any such fees in the case of more than one member of the same family attending the schools at the same time Provided further that the education board may admit to any of the schools without payment of fees or at such modified fees as they may fix in each case such number of pupils at each school not exceeding five per cent. of the total number of pupils on the roll of the school for whom ordinary fees are paid as they may select after satisfying themselves that the children require such aid.

36. Every headmaster and headmistress shall be appointed by and hold office at the pleasure of the education board and subject to the approval of the education board and to the regulations which may be issued by the department the headmaster or headmistress shall have under his or her control the choice of books the methods of teaching the arrangement of classes and generally the whole organisation and discipline of the school to which he or she is appointed and shall also subject to an appeal to the education board have the power of expelling children from such school or suspending their attendance thereat for any cause that appears to him or her sufficient.

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Appointment
and authority
of head-
master or
headmistress.

37. The headmaster or headmistress shall have the power of appointing suspending and dismissing all assistant teachers and other assistants at the school to which he or she is appointed but no appointment or dismissal of an assistant teacher or other assistant shall be final until approved by the education board and in all such cases the approval or disapproval of the education board shall be entered in their minutes. Provided that in any case of suspension the headmaster or headmistress shall report the same to the education board within two days.

Assistant
teachers.

38. When it shall appear to the education board that it would be to the advantage of any of the schools that any teacher in their employment should be afforded facilities for studying educational problems abroad or for improving his or her qualifications as a teacher the education board may subject to such terms and conditions as they may prescribe grant such teacher leave of absence for any period not exceeding one year at a time and pay such teacher an allowance not exceeding the amount of the yearly salary then paid to such teacher. The education board may also pay the whole or such part as they may think fit of the reasonable expenses that may be incurred by any headmaster headmistress or teacher in their employment in attending with their consent a conference on or making inquiry with reference to any subject connected with education.

Facilities
for teachers
extending
their studies
and attending
educational
conferences.

39. Subject to the provisions of this Order and to the regulations which may from time to time be issued by the department the education board shall after consultation with the headmaster or headmistress prescribe the instruction to be given at each school the relative prominence and value to be assigned to each subject taught the school hours terms vacation

Supervision
of education
and school
buildings &c.

A.D. 1909. — and holidays and shall also have the supervision of school buildings and the equipment thereof and playgrounds and shall determine the number of assistant teachers and other assistants and fix their salaries and the mode of payment.

Inspection. 40. All the schools shall be periodically inspected in such manner as the department may from time to time prescribe.

General powers. 41. The education board may if they think fit in addition to the other powers vested in them and subject to the provisions of this Order incur expenditure and defray the same in carrying out the following purposes or any of them connected with the schools or the pupils or former pupils thereof (that is to say):—

- (1) In providing medals books or other prizes to be awarded to pupils of merit and in holding exhibitions by pupils at the close of the school sessions and at such other times as the education board may consider suitable:
- (2) In providing and maintaining playgrounds at or near the schools as well as elsewhere with or without buildings or erections to be used for games and physical recreation by the pupils which grounds and any buildings or erections may also be used by former pupils on such conditions as the education board may from time to time determine and in remunerating such persons as the education board may appoint to act as instructors or supervisors of such games or recreation:
- (3) In paying a reasonable fee or salary to any person whom the education board may appoint at any school or schools to act as medical examiner and supervisor of the pupils or to any person whom they may appoint to report on the school buildings and grounds or on the organisation and management of the schools or to conduct any examination or competition in regard to the educational attainments of pupils:
- (4) In providing and renewing the equipment required for supplying meals to the pupils at such charges as the education board may fix from time to time and in paying any deficit that may occur in any year in the accounts of income and expenditure in connexion with the supply of such meals:

- (5) In making grants towards the expenses of (A) cadet corps (B) instruction and practice in rifle shooting (C) annual games or sports (D) equipment of libraries and museums and (E) any association of pupils or former pupils which has for its object the intellectual or physical improvement of its members: A.D. 1909.
- (6) In purchasing tickets or paying fees to enable such number of the pupils or former pupils as the education board may determine to attend the classes of the Heriot-Watt College Edinburgh the Edinburgh College of Art and schools of cookery and domestic economy and to obtain such other extra-mural instruction as may be resolved on by the education board and such benefits shall be awarded in such way and manner as the education board may determine:
- (7) In establishing and maintaining under such conditions and regulations as may from time to time be made by the education board with the approval of the department boarding-houses for pupils:
- (8) In paying as heretofore the expense of a schools dinner at the closing of the schools each year for the long vacation.

Scholarships and Bursaries.

42. The education board may award school attendance scholarships not exceeding one hundred and fifty in number amongst pupils who have taken any full course of instruction at any of the schools throughout the session preceding the award and that by competitive examination or by good conduct and progress as shown in class work or in such other way or manner as the education board may from time to time determine Such scholarships shall confer the right to free education at the schools for such period and on such conditions as the education board may also from time to time determine and shall be allocated amongst the schools in such proportions as the education board may from time to time think fit. School attendance scholarships.

43. The education board may award bursaries not exceeding one hundred in number by competitive examination or by good conduct and progress as shown in class work or in such other way or manner as they may from time to time determine School bursaries.

A.D. 1909. amongst pupils who have taken any full course of instruction at any of the schools throughout the session preceding the award Such bursaries shall confer the right to free education at the schools and yearly allowances according to such scale for such period and on such conditions as the education board may fix from time to time and shall be allocated amongst the schools in such proportions as the education board may from time to time appoint Provided that each bursary shall be known by one or other of the following names as may be determined by the education board (that is to say) Merchant Maiden Bursary George Watson Bursary Daniel Stewart Bursary or James Gillespie Bursary as the case may be.

Higher
bursaries.

44. The education board may provide for the further advancement in education or practical training in such universities technical or other colleges schools of art or music or cookery and domestic economy or otherwise in this country or abroad as may be approved by the education board of boys or girls of merit and promise by awarding such number of bursaries not exceeding thirty-two as they may fix from time to time Such bursaries shall not exceed in value twenty-five pounds each per annum shall be tenable for such period not exceeding four years and on such conditions as the education board may fix from time to time shall be awarded by competitive examination or by good conduct and progress as shown in class work or in such other way or manner as the education board may from time to time determine amongst the pupils who have taken any full course of instruction at any of the schools throughout the two sessions preceding the award and shall be allocated amongst the schools in such proportions as the education board may from time to time appoint Provided that each bursary shall be known by one or other of the following names as may be determined by the education board (that is to say) Merchant Maiden Higher Bursary George Watson Higher Bursary Daniel Stewart Higher Bursary or James Gillespie Higher Bursary as the case may be.

Modern
language
scholarships.

45. The education board may award such number of modern language scholarships not exceeding eight as they may from time to time consider expedient Such scholarships shall not exceed in value seventy-five pounds each per annum shall be tenable at such universities schools or institutions abroad as may be approved by the education board for such period not exceeding

two years as the education board may fix having regard to the circumstances of each case and shall be awarded amongst pupils who have taken any full course of instruction at any of the schools throughout the two sessions preceding the award or former pupils who had taken such course throughout the last two sessions of their school attendance in such manner and under such conditions as the education board may from time to time appoint.

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46. The education board may award such number of travelling scholarships not exceeding eight as they may from time to time consider expedient. Such scholarships shall not exceed in value seventy-five pounds each per annum shall be tenable for such period not exceeding two years as the education board may fix having regard to the circumstances of each case and shall be awarded amongst pupils who have taken any full course of instruction at any of the schools throughout the two sessions preceding the award or former pupils who had taken such course throughout the last two sessions of their school attendance in such manner and under such conditions as the education board may from time to time appoint. Provided that each scholar shall be required during the tenure of the scholarship to prosecute his or her education by advanced study or practical training of a kind to be approved by the education board.

Travelling
scholarships.

47. The education board if they consider that any foundationer who has failed to obtain one of the bursaries provided in the section of this Order the marginal note of which is "Higher bursaries" is nevertheless a scholar of merit and promise may confer on him or her a bursary of a value not exceeding twenty pounds a year tenable for a period not exceeding three years at any university or other place of advanced or special instruction to be approved by the education board. Provided that no foundationer who shall be awarded a bursary under this section shall receive any payment under (a) or (b) of the final proviso to the section of this Order relating to foundationers of George Watson's Hospital the marginal note of which is "Benefits to foundationers."

Bursaries
for promising
founda-
tioners.

48.—(1) The education board shall continue the "Miss Brand Bursary" and the "Wright Bursary" which have been founded in connexion with the schools now known as the Edinburgh Ladies' College and George Watson's College for boys

Continuance
of donors'
bursaries and
prizes.

A.D. 1909. respectively as follows (that is to say) (A) the "Miss Brand Bursary" of the value of twelve pounds for one year to enable the holder to prosecute her educational advancement and (B) the "Wright Bursary" of the value of ten pounds for one year to enable the holder to attend a university or other place of advanced instruction.

(2) The education board shall also continue to award Dr. Mitchell's prize at the said Edinburgh Ladies' College the Dudgeon prize and the Lizars prize at the said George Watson's College for Boys and Dr. Ogilvie's prizes and the Kirk Mackie prizes at all the schools.

Provided that the education board shall administer the bursaries and prizes referred to in this section under such conditions and regulations consistent with the original purpose thereof as they may prescribe and provided that such bursaries and prizes shall be awarded among pupils at the respective schools either by competition or by good conduct and progress as shown in class work or in such other way or manner as the education board may from time to time determine.

Withdrawal
of bursary
&c.

49. The education board may at any time withdraw any bursary or scholarship from the holder thereof should he or she in their opinion—

- (1) fail to make reasonable educational progress; or
- (2) conduct himself or herself so as to warrant such withdrawal; or
- (3) if in attendance at one of the schools be otherwise undesirable as a pupil at such school.

PART III.

SUPERANNUATION FUND.

Transfer of
funds to
education
board.

50. The Merchant Company Endowment Superannuation Fund established under the Act of 1895 shall on and after the appointed day be held managed and administered by the education board under and subject to the provisions of this Order and on and after the appointed day all the property rights funds securities powers functions and duties that may belong and attach to the superannuation fund by this Order transferred by whomsoever held or in whomsoever vested shall be and are hereby transferred to and vested in the education board for the purposes of this Order so far as these relate to

the superannuation fund without the necessity of any new conveyance transfer assignation or other instrument. A.D. 1909.

51. The superannuation fund transferred by the immediately preceding section together with the grants contributions interest and other revenue thereof shall on and after the appointed day and subject to the provisions of this Order form a separate fund or trust in the hands of the education board and shall be called "The Merchant Company Schools Superannuation Fund."

Name of
fund.

52. The superannuation fund shall consist of—

Fund how
made up.

(1) The superannuation fund by this Order transferred to the education board:

(2) The annual grant or contribution to be paid from the income of the educational endowments as herein-before provided which grant or contribution shall be paid by being transferred by the education board from the said income to the superannuation fund as on the first day of February in each year commencing with the first day of February 1910 and so forth in each year thereafter:

(3) The annual contribution as herein-after provided by every contributor to the superannuation fund:

(4) The interest and other revenue accruing on the fund on the respective contributions to the fund and any accumulations thereof.

53.—(1) It shall be obligatory on all persons who at the appointed day as employees of the governing bodies of any of the educational endowments dissolved by this Order are contributors to the superannuation fund transferred by this Order to continue to be contributors to the fund reconstituted by this Order.

Contributors
to super-
annuation
fund.

(2) It shall be obligatory on every headmaster headmistress lady superintendent assistant teacher and other employee in the schools and any officer and other employee in connexion with the management and administration of the endowments of the education board including the superannuation fund who was not an employee of the governing bodies of any of the educational endowments dissolved by this Order but who enters the employment of the education board on or after the appointed day and whose remuneration consists wholly or partly of salary to become a contributor to the superannuation fund if so required by the education board:

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Provided that the annual contribution by every such contributor to the superannuation fund shall not exceed five per centum on the amount of such contributor's salary or other remuneration from the education board and shall be deducted by the education board in four equal portions from the quarterly payments of the salary or other remuneration of such contributor :

Provided further that the education board may at any time admit any person in their employment to be a contributor to the superannuation fund who while in the employment of the governing bodies of any of the educational endowments dissolved by this Order may not have become a contributor to the superannuation fund transferred by this Order and that on such terms as the education board may think fit.

Application
of superannu-
ation fund.

54. The superannuation fund shall subject to the provisions of this Order be applied by the education board in manner following (that is to say) :—

- (1) For payment of any expenses incurred by the Merchant Company Endowments Board previous to the appointed day and any expenses to be incurred by the education board in maintaining managing and administering the superannuation fund and in connexion therewith :
- (2) For payment of superannuation allowances granted and subsisting at the appointed day from the superannuation fund transferred by this Order :
- (3) For payment of any special superannuation allowances herein-after mentioned which may be granted after the appointed day to former teachers in James Gillespie's school :
- (4) For payment of any compensation which may be payable as herein-after mentioned to officers and other employees of the governors of James Gillespie's Hospital and Free School :
- (5) For payment of superannuation allowances which may be granted on or after the appointed day to persons in the employment of the education board who are contributors to the superannuation fund :
- (6) For repayment as herein-after provided to any contributor ceasing to be in the service of the education board

before the age at which he or she would have become entitled to a superannuation allowance of his or her own contributions to the fund : A.D. 1909.
—

- (7) For payment as herein-after provided to the representatives of any contributor dying either before or after such contributor has become entitled to a superannuation allowance of the whole or any part of such contributor's own contributions to the fund.

55. The education board shall subject to the provisions of this Order and with the approval of the department make regulations for the management and administration of the superannuation fund and may with the like approval rescind alter extend or vary such regulations or any part or parts thereof and shall by such regulations provide for the following among other matters and things (that is to say) :— Education board to make regulations.

- (1) The rate of contribution to the said fund by each contributor :
- (2) What (if anything) shall disqualify any person from becoming a contributor to the said fund and from participating in the benefits thereof :
- (3) Under what circumstances any person who has contributed to the said fund shall cease to be a contributor and to be entitled to participate in the benefits thereof :
- (4) The age at which or other circumstances in which a person shall become entitled to a superannuation allowance :
- (5) The scale by which the amount of the superannuation allowance shall be regulated :
- (6) Enabling the education board to advise with and receive suggestions from the contributors and for carrying into effect such suggestions :
- (7) The repayment to any contributor ceasing to be in the service of the education board before the age at which he or she would have become entitled to a superannuation allowance of his or her own contributions to the fund and the provision in such cases that such contributor shall have no further claim upon the said fund :

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- (8) The repayment to the representatives of any contributor dying before such contributor has become entitled to a superannuation allowance of such contributor's own contributions to the fund :
- (9) The repayment to the representatives of any contributor dying after having received a superannuation allowance of the balance if any of such contributor's own contributions to the fund after deducting the amount paid as superannuation allowance :
- (10) For carrying out the section of this Order the marginal note of which is "Special superannuation allowances" :
- (11) To provide for all such other matters in relation to the management and administration of the superannuation fund as the education board shall deem fit and proper :

Provided always that a copy of any such proposed regulations and of any proposed rescissions alterations extensions or variations thereof shall not less than twenty-eight days before application for the approval thereof shall be made to the department be sent by the secretary of the education board to every person then in their employment who is or may become a contributor to every person who is in receipt of a superannuation allowance and to the teachers in James Gillespie's School referred to in the section of this Order the marginal note of which is "Special superannuation allowances" and the department before approving of any such regulations or any rescissions alterations extensions or variations thereof shall consider any representations made to them by any such person or teacher.

Superannuation allowances alimentary.

56. The superannuation allowances shall be held and deemed to be purely alimentary and shall not be assignable or liable to be arrested or otherwise affected or attached by creditors nor shall such superannuation allowances be subject to the jus mariti and right of administration or any other right of any husband whom a contributor may marry or be liable to his debts or deeds but the same shall be payable to each contributor entitled to the same upon his or her own receipt notwithstanding such assignation arrestment attachment or marriage which receipt shall sufficiently exonerate the education board.

Special superannuation allowances.

57. The education board may grant special superannuation allowances on such terms as they think fit or as may be agreed

to the teachers in James Gillespie's School (at the date of the school ceasing to be under the administration of the governors of James Gillespie's Hospital and Free School) who were contributors to the superannuation fund transferred by this Order for a period of not less than five years and who had not at the said date reached superannuation age and received superannuation allowances. Provided that such special allowances shall not commence to run or be payable until the said teachers have in the case of males attained the age of sixty-five years and in the case of females attained the age of sixty years. Provided further that the representatives of any of the said teachers who may die before or after receiving a superannuation allowance shall be entitled to the same right to repayment of a contributor's own contributions to the fund or the balance of such contributions as representatives of contributors to the said fund under this Order.

A.D. 1909.

58. The education board shall within six months from the appointed day pay to the officers and other employees of the governors of James Gillespie's Hospital and Free School who are at the appointed day contributors to the superannuation fund transferred by this Order compensation for their interest in the said fund as such compensation shall be fixed by the actuary of the education board. Provided that should any of such officers or employees be dissatisfied with the amount of his or her compensation as fixed by the said actuary the matter in question shall be referred by the education board to the President of the Faculty of Actuaries in Scotland whose decision shall be final and binding upon all parties concerned.

Payments to
officers &c.
of James
Gillespie's
Hospital and
Free School.

59. A valuation of the assets and liabilities of the superannuation fund shall be made from time to time at intervals of not less than three years and not more than seven years by an actuary appointed by the education board and the report by the actuary thereon shall be printed and circulated among the contributors to the said fund and among persons in receipt of superannuation allowances from the said fund.

Valuation of
assets and
liabilities of
superannua-
tion fund.

60. In the event of the superannuation fund by this Order transferred to the education board together with the annual contributions of the education board and of the contributors to the superannuation fund respectively at the maximum rate being found at any time insufficient to meet the liabilities of the super-

Provision for
deficiency in
superannua-
tion fund.

A.D. 1909. annuation fund the education board shall out of the reserve fund of the educational endowments referred to in the section of this Order the marginal note of which is "Reserve funds" make such special contribution to the superannuation fund as may be required to meet such deficiency.

Agreement
with Scotch
Education
Department.

61. Notwithstanding the provisions of this Order the education board may agree with the department for the carrying on or the discontinuance in whole or in part (subject to such financial or other adjustment as may be necessary) of the superannuation fund in so far as applicable to teachers and for altering varying amending or limiting the terms conditions regulations and provisions thereof in accordance with the terms of the Education (Scotland) Act 1908.

PART IV.

CHARITABLE ENDOWMENTS.

General Provisions.

Transference
and vesting
of property.

62. The endowment of James Gillespie's Hospital and Free School and William Watherston's Endowment shall on and after the appointed day be held managed and administered by the charities board under and subject to the provisions of this Order and on and after the appointed day all the estates heritable and moveable property rights funds securities powers functions and duties that may belong and attach to or may be vested in or may subsequently accrue to the said endowment of James Gillespie's Hospital and Free School and William Watherston's Endowment respectively by whomsoever held or in whomsoever vested (except the heritable property and pertinents thereof situated in Hanover Street Edinburgh held in trust by the Merchant Company under the Act of 1898 for behoof of the said Company and of the other trusts of and connected with the Merchant Company according to their several interests therein and occupied partly as the hall and offices of the Merchant Company and the said other trusts and partly by their tenants) shall subject to the provisions of the Act of 1898 (in so far as not repealed by this Order) and this Order be and are hereby transferred to and vested in the charities board for the purposes of this Order so far as these relate to the charitable endowments without the necessity of any new conveyance transfer assignation or other instrument.

63. The charities board shall subject to the provisions of this Order consist of twenty-four members constituted and elected as follows (that is to say):—

A.D. 1909.
 Constitution
 of charities
 board.

- (1) The master the treasurer and the twelve assistants of the Merchant Company for the time being ex officio ;
- (2) The senior bailie of the City of Edinburgh ex officio and four other members of and to be elected by the town council of the said city ;
- (3) Two ministers of the Edinburgh presbytery of the Church of Scotland to be elected by the said presbytery ; and
- (4) Three persons to be elected by the Merchant Company from among the members of the Merchant Company.

64. The first and all subsequent members of the charities board shall be and are hereby incorporated under the name of "The Merchant Company Charities Board" and under that name shall be a body corporate with perpetual succession and a common seal and may sue and be sued and may purchase acquire hold and dispose of lands and other property heritable and moveable for the purposes of this Order so far as these relate to the charitable endowments and shall have all the other privileges of a body corporate.

Incorporation of charities board.

65. Within six months from the appointed day the charities board shall transfer and pay over to the education board but under burden of the retiring allowances referred to in the section of this Order the marginal note of which is "Property and endowment of James Gillespie's School" :—

Transfer of property and endowment of James Gillespie's School.

- (1) The buildings and site of James Gillespie's School and playground and pertinents thereof under burden of any current lease of the said subjects Provided that should the governors of James Gillespie's Hospital and Free School have entered into an agreement of sale of the said heritable property the education board shall be entitled to all the rights and privileges of a seller and on the other hand shall duly implement the obligations of sale undertaken by the said governors to the purchaser Provided further that in the event of a sale of the said subjects having been completed by the said governors prior to their dissolution under

A.D. 1909.

this Order the sum realised shall be paid over by the charities board to the education board together with any interest thereon accrued as at the date of transfer :

- (2) The furniture and other equipment of the said school or the sum realised from the sale of the same together with any interest thereon accrued as at the date of transfer :
- (3) The amount of the average annual endowment of the said school from the funds of the said hospital and free school for the five financial years ended on the first day of October one thousand nine hundred and eight capitalised at twenty-five years' purchase as such capital sum shall be fixed by a certificate under the hand of the auditor of the accounts of the education board and charities board appointed as after mentioned Provided that in determining the amount of the said average annual endowment there shall be excluded all capital expenditure in the annual accounts of the said governors :
- (4) Any balance standing at the credit of the account of the said school at the appointed day together with any interest thereon accrued as at the date of transfer.

James Gillespie's Hospital.

Name of
endowment.

66. The endowment of James Gillespie's Hospital and Free School shall subject to the provisions of this Order continue to form a separate fund or trust to be called "James Gillespie's Hospital."

Application
of free
income.

67. The free income of the said James Gillespie's Hospital shall after meeting the expenses of management be applied in payment of pensions to decent godly and well-behaved men and women in indigent circumstances who are qualified as after mentioned to receive such pensions.

Classes of
pensioners.

68. The classes of persons qualified to receive such pensions shall be—

- (1) Persons whose birth name is Gillespie belonging to any part of Scotland who shall rank preferably upon the funds of the said hospital ;

(2) Persons belonging to the City of Edinburgh who shall rank secondly upon the funds of the said hospital ; A.D. 1909.

(3) Persons belonging to the burgh of Leith or the county of Midlothian generally (except the said City of Edinburgh) who shall rank thirdly upon the funds of the said hospital ; and

(4) Persons belonging to any part of Scotland (except the said City of Edinburgh burgh of Leith and county of Midlothian) who shall rank fourthly upon the funds of the said hospital :

Provided that the charities board shall in each case determine whether a person is qualified to receive a pension under this section and if so in which class.

69. All pensioners of the said hospital shall be at least fifty-five years of age on the first day of July of the year of election. Age of pensioners.

70. No person shall be eligible for a pension who is in receipt of parochial relief. Disqualification for pensions.

71. Each pension from the said hospital shall be not less than ten pounds per annum and not more than twenty-five pounds per annum payable in advance in quarterly instalments during the pleasure of the charities board either to the pensioner or to such other person as the charities board may from time to time determine to be applied for behoof of the pensioner. Amount and tenure of pensions.

72. The charities board shall annually on a date or dates to be fixed by them elect such number of pensioners as in the opinion of the board the free income of the said hospital will provide for. Election of pensioners.

73. The charities board shall on application issue to each applicant for a pension a form of application with a schedule appended containing particulars of the information certificates and documents required in support of the application and every application shall be made on the form so supplied and shall be lodged with the board along with the required documents. Applications for pensions.

William Watherston's Endowment.

74. William Watherston's Endowment shall subject to the provisions of this Order continue to form a separate fund or Name of endowment.

A.D. 1909. trust and shall continue to be called "William Watherston's Endowment."

Application
of free
income.

75. The free income of William Watherston's Endowment shall after meeting the expenses of management be applied in payment of annual gifts to the various classes of God-fearing industrious peaceable and sober persons qualified under this Order to receive such gifts who on account of age accident bad health general infirmity or other unfortunate circumstances in which they have not been culpable are unable to earn their livelihood at their trade or business.

Classes of
donees.

76. The classes of persons qualified to receive such gifts shall be—

- (1) The surviving nominees (if any) of the late William Watherston (the donor of the endowment) and the heirs (if any) of his body whomsoever who shall be termed first-class donees and who shall rank preferably upon the funds of the said endowment;
- (2) Members of the Merchant Company over sixty years of age not exceeding at one time eight in number who shall be termed second-class donees and who shall rank after the first-class donees upon the funds of the said endowment;
- (3) Any number of (A) house carpenters and joiners over sixty years of age and (B) masons over fifty-two years of age who shall be termed third-class donees and who shall rank after the first and second class donees upon the funds of the said endowment; and
- (4) Any number of (A) slaters (B) plumbers and (C) plasterers being in each case over sixty years of age who shall be termed fourth-class donees and who shall rank after the other aforesaid classes of donees upon the funds of the said endowment:

Provided that the charities board shall in each case determine whether a person is qualified to receive a gift under this section and if so in which class:

Provided further that the respective qualifying ages shall be taken as at the first day of September of the year of election.

77. No person other than a first-class donee shall be eligible to receive or to hold a gift from the said endowment who is in receipt of an annual income from all other sources as follows:—

A.D. 1909.
Income of
donees &c.

- (1) As regards a second-class donee fifty pounds or upwards;
- (2) As regards a third-class donee thirty pounds or upwards;
- (3) As regards a fourth-class donee twenty-five pounds or upwards;

nor shall any such person be eligible who is in receipt of parochial relief or of a pension from any charity. Provided that the receipt of a state pension shall not render a person ineligible under this section.

78. Every donee of the said endowment of the third or fourth class shall possess and be subject to the following special qualifications and conditions:—

Special
qualification
of two
classes of
donees.

- (1) He shall have been a good tradesman in receipt of the average wages for a good tradesman and have resided in the City of Edinburgh and worked at his trade there for a consecutive period of five years;
- (2) His nearest relatives (that is to say his children father mother sisters or brothers) shall not be in a position to maintain him;
- (3) He shall at the date of his application for a gift be a resident in the said city;
- (4) He shall reside in the said city after his election as a donee:

Provided that the charities board shall in each case determine whether a person does or does not possess and fulfil the said qualifications and conditions.

79. Each gift from the said endowment shall be payable in advance in half-yearly instalments according to the following yearly scale (that is to say):—

Amount of
gifts.

First-class donee	-	-	Twelve pounds.
Second-class donee	-	-	Twenty-five pounds.
Third-class donee	-	-	Twelve pounds.
Fourth-class donee	-	-	Ten pounds.

80.—(1) Gifts to the first-class donees of the said endowment shall be payable during their lifetime and good behaviour.

Tenure of
gifts.

A.D. 1909.

(2) Gifts to the second third and fourth class donees of the said endowment shall be payable during the pleasure of the charities board. Provided that any gift may be paid either to the donee or to such other person as the charities board may from time to time determine to be applied for behoof of the donee.

Election of donees.

81. The charities board shall annually on a date or dates to be fixed by them elect such number of donees of the second third and fourth classes aforesaid as in the opinion of the said board the free income of the said endowment will provide for.

Applications for gifts.

82. The charities board shall on application issue to each applicant for a gift a form of application with a schedule appended containing particulars of the information certificates and documents required in support of the application and every application shall be made on the form so supplied and shall be lodged with the said board along with the required documents.

PART V.

ELECTIONS AND MEETINGS.

Election &c. of members of boards.

83.—(1) The elections of the members of the education board and the charities board respectively who under the provisions of this Order are required to be elected shall take place annually in October or November at meetings of the electing bodies as each of such bodies may appoint and the first election of members of the said respective boards shall take place in October or November 1909.

(2) The co-option of members of the education board shall take place annually as soon as conveniently may be after the first Thursday of December and the first co-option shall take place as soon as conveniently may be after the first Thursday of December 1909.

(3) The members to be elected or co-opted in 1909 and to be elected or co-opted in each succeeding year shall continue in office until the first Thursday of December in the year following that in which they are elected or co-opted and shall be eligible for re-election or renewed co-option if otherwise qualified under this Order. Provided that no member elected or co-opted shall hold office on the education board or on the charities board for a longer consecutive period than three years.

Vacancies to be filled up.

84. In the event of any elected or co-opted member resigning office or becoming bankrupt or incapacitated to act a vacancy

shall occur and on such vacancy occurring or in the event of a vacancy occurring by the death of any elected or co-opted member the body which elected or co-opted the person whose office has become vacant shall elect or co-opt another person to supply such vacancy at a meeting of such electing or co-opting body to be held not later than six weeks after such vacancy shall have occurred and the person so elected or co-opted shall continue in office until the first Thursday of December following his election or co-option and shall be eligible for re-election or renewed co-option subject to the provisions of the immediately preceding section of this Order and subject to this further provision that in determining the period of eligibility for re-election or renewed co-option the time from the date of election or co-option under this section until the first Thursday of December following shall be computed as one year.

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85. The master of the Merchant Company for the time being shall be chairman of the education board and of the charities board but in his absence from any meeting the treasurer of the Merchant Company shall be chairman whom failing a chairman of the meeting shall be chosen for the time from among the members present. The chairman of the meeting shall have a deliberative and also (in the case of an equality of votes) a casting vote.

Chairman of
boards.

86. The first meeting of each of the said boards shall be held in the Merchants' Hall Edinburgh on the first Thursday of December 1909 and shall be called by billet previously issued by the master of the Merchant Company. Every subsequent meeting of either board shall be held as such board may direct or in the absence of any direction by such board as the master whom failing the treasurer of the Merchant Company may direct and all such meetings except the first meeting shall be called by billet issued by the secretary for the time being and posted at least two days before the date of meeting. At every meeting of the said respective boards ten members shall be a quorum.

Meetings
to be called
by billet.
Quorum.

87. Each of the said boards may from time to time appoint committees of their number and conveners and vice-conveners of such committees and may commit to such committees all such powers and give to them all such instructions as may appear to each board expedient and a majority of the members of each such committee shall be a quorum.

Committees
of boards.

A.D. 1909.

Boards
properly
constituted
notwith-
standing
vacancies.

88. The education board and the charities board respectively shall be held to be properly constituted and may respectively exercise their powers and functions and carry on the business of the said boards respectively notwithstanding that there is any vacancy in the prescribed number of members of the said respective boards or any informality in the election or co-option of members to the said boards or either of them.

PART VI.

FINANCE.

Power to
lease feu or
sell.

89. The education board and the charities board respectively shall have and may exercise the following powers:—

- (1) They may lease or feu any heritable property which may belong to them respectively :
- (2) They may sell and convey heritable property either by public roup or private bargain :
- (3) They may sell and realise all stocks bonds mortgages and other moveable property and assign and discharge all securities which may belong to them respectively :

Provided that the said boards shall respectively invest the money obtained by such sales assignments or discharges in accordance with the provisions of the immediately succeeding section except in so far as the same may be required for the extinction of debt.

Investment
of funds.

90. Each of the said boards may retain the present investments of the trust funds or may from time to time realise and invest the same and any additions thereto in the purchase of heritable property in Scotland or in any security in which gratuitous trustees are or may hereafter be by any public general Act applicable to Scotland empowered to invest trust funds and each of the said boards may also lend to the other board and may lend from any of the funds under their management to any other of such funds or to the Merchant Company or the widows' fund of the Merchant Company upon simple receipt and in the discretion of the board concerned may vary and change all or any such investments.

Powers to
borrow or
expend.

91. The said boards shall respectively have power to borrow or expend capital for the purposes of this Order respectively

relating to such board (to which capital may properly be applied) subject to the repayment of any sum to be borrowed in thirty years from the respective dates of borrowing. Provided nevertheless that each of the said boards may in connexion with the feuing of their heritable estates borrow or expend capital for the formation of roads and sewers and for similar works for the development of feuing without making the said provision for the repayment of capital. Provided also that each board may borrow from the other board and from any of the funds under their management or from the Merchant Company or the widows' fund of the Merchant Company upon simple receipt. A.D. 1909.

92.—(1) The education board may create and maintain from the educational endowments a reserve fund not exceeding fifty thousand pounds and the charities board may create and maintain from the endowment of James Gillespie's Hospital and from William Watherston's Endowment respectively two reserve funds each not exceeding five thousand pounds which reserve funds shall be created and maintained from the excess of revenue over expenditure of the said respective endowments or any of them occurring at the close of each financial year commencing with and including the close of the financial year in one thousand nine hundred and ten as the same may be ascertained and fixed by a certificate under the hand of the accountant-auditor of the said boards for the time being together with the interest accruing thereon and the education board and the charities board respectively are hereby authorised and empowered to place from time to time in the said reserve funds respectively to the extent required for their creation and maintenance such excess of revenue over expenditure as soon as the same is ascertained and fixed as aforesaid. Reserve funds.

(2) The reserve funds so created and maintained shall be applied by the said boards respectively in such way and manner as they may respectively deem expedient for the benefit of the respective endowments to which they are applicable and of the superannuation fund as in this Order provided and inter alia towards meeting—

(a) The excess of expenditure over revenue of the said respective endowments occurring at the close of any financial year as the same may be ascertained and fixed

A.D. 1909.

by a certificate under the hand of the accountant-auditor of the said boards as aforesaid;

(b) The losses which may be sustained by the respective endowments through the depreciation of securities or insolvency of debtors;

(c) Extraordinary expenditure on lands buildings and appliances belonging to the respective endowments; and

(d) As regards the reserve fund created and maintained from the educational endowments only the special contribution to the superannuation fund provided for in the section of this Order the marginal note of which is "Provision for deficiency in superannuation fund."

Application
of surplus
of reserve
fund.

93. Any surplus revenue from the educational endowments which may remain or be available after the education board have provided for the reserve fund to be created and maintained under the immediately preceding section shall be applied by the education board for the promotion of higher education in the City of Edinburgh according to such scheme as may on the application of the education board be approved by the department or according to such amended scheme as may from time to time on the application of the education board be also approved by the department and the department is hereby authorised and empowered to approve of such original or amended schemes subject to such alterations thereon as the department may consider necessary.

Accounts to
be kept.

94.—(1) The education board shall cause two separate and full sets of accounts to be kept applicable the one set to the educational endowments and the other to the superannuation fund showing the sums of money received and expended on behalf of the educational endowments and the superannuation fund respectively and the assets and liabilities thereof in such form and manner as the department shall from time to time prescribe and after the accounts have been examined and passed by the board an abstract thereof in such form as the department shall from time to time prescribe shall be transmitted to the department and after such audit as is herein-after provided shall be published by the education board in such manner as the department may also from time to time prescribe.

(2) The charities board shall cause two separate and full sets of accounts to be kept applicable the one set to James Gillespie's Hospital and the other to William Watherston's Endowment showing the sums of money received and expended on behalf of the charitable endowments respectively and the assets and liabilities thereof. A.D. 1909.

95.—(1) A duly qualified accountant shall annually as at a date to be fixed by the education board audit the whole accounts of the said board and report thereon to the said board which accounts shall also be audited on behalf of the department in such manner as the department may from time to time prescribe. Audit of accounts.

(2) A duly qualified accountant shall annually as at a date to be fixed by the charities board audit the whole accounts of the said board and report thereon to the board.

96. An abstract of the whole accounts of the education board and the charities board respectively shall be printed and circulated annually among the members of the Merchant Company and the members of the said boards and a copy shall be supplied to any Government officer or inspector requiring the same. An abstract of the accounts of the superannuation fund shall also be printed and circulated annually among the contributors to that fund and amongst persons in receipt of superannuation allowances from the said fund. Abstract of accounts to be printed and circulated.

97. The education board and the charities board may respectively pay out of their funds such reasonable sums as they may think proper to meet the outlays of committees and officers visiting and inspecting the estates of the said boards and may also make such voluntary payments for the benefit of the respective localities in which their estates are situated or such grants to local institutions or charities as they may from time to time see fit but the whole sums so paid for the said purposes other than sums to meet the outlays of committees and officers shall not exceed fifty pounds for each such locality in any year. Inspection of estates &c.

98. Any money arising from the sale of timber or from mines or minerals on the estates of either of the said boards or from any source which is temporary or occasional except casualties of superiority and similar payments shall be invested by the board to which it is applicable and form part of their capital funds. Casual profits.

A.D. 1909.

PART VII.

MISCELLANEOUS.

Vested
interests.

99. Every person at the commencement of this Order holding any office place employment pension compensation allowance foundation bursary scholarship or emolument under or arising out of the educational and charitable endowments and the superannuation fund by this Order transferred shall continue to hold the same subject to the conditions under which it is held at the commencement of this Order and to the provisions of this Order.

Transfer of
books and
moveables.

100. The governing bodies of the educational endowments and the superannuation fund by this Order transferred shall cause to be transferred to the education board within such time and in such manner as the said board may direct all the books deeds papers plans and all other documents and titles and cash balances and moveables belonging to the educational endowments and the said superannuation fund and similarly the governing bodies of the charitable endowments shall cause to be transferred to the charities board all the books and others as aforesaid belonging to the charitable endowments. Provided that all paintings sculpture or other works of art or of historical interest and furniture of any of the said educational or charitable endowments in the custody of the Merchant Company shall be and are hereby transferred to and shall continue to be held by the Merchant Company as part of the equipment of the hall and offices of the Company.

Discharge
of governing
bodies.

101. From the date at which the governing bodies of the educational endowments the charitable endowments and the superannuation fund by this Order transferred respectively have under the provisions of this Order ceased to exercise any right or power of administration and have made the transfer directed in the immediately preceding section the governing bodies and the individual members thereof are hereby exonerated and discharged of all their actings and intromissions as governing bodies of the educational endowments the charitable endowments and the superannuation fund respectively and of and from all obligations claims and demands in respect of the same.

Appointment
of officers.

102. The education board and the charities board respectively may (subject to the provision that the secretary of the Merchant Company shall be appointed the secretary of the said respective

boards with such remuneration as these boards may respectively
fix) appoint all such officers and other persons as they may deem
necessary for carrying into effect the provisions of this Order and
may prescribe their duties and fix the amount of their respective
salaries and remuneration All officers and other persons employed
by the said boards respectively shall hold their appointments at
the pleasure of the said respective boards Provided that the said
boards respectively may if necessary at any time make an interim
appointment to any office Provided also that the said boards
respectively may also if they in any case consider it necessary
procure guarantees for the fidelity of such officers and other
persons of such amount and in such form and manner as the said
boards respectively may prescribe.

A.D. 1909.
—

103. All liabilities and obligations incurred or undertaken
by the governing bodies of the educational endowments the
charitable endowments and the superannuation fund by this
Order transferred or any of them and remaining undischarged at
the date when in accordance with the provisions of this Order
such governing bodies cease to exist shall as at that date in so
far as applicable to the educational endowments and the said
superannuation fund become the liabilities and obligations of the
education board and in so far as applicable to the charitable
endowments become the liabilities and obligations of the charities
board Provided that the said boards respectively shall have the
same rights and be entitled to the same privileges with reference
to such liabilities and obligations as are or may be possessed by
the governing bodies respectively.

Liabilities
of dissolved
governing
bodies.

104. All deeds and instruments of a formal character
requiring to be executed by either the education board or the
charities board shall be sealed with the corporate seal of such
board and signed by any two members and the secretary of
such board Provided that in the absence of the secretary any
such deed or instrument may be signed by any other official of
such board specially appointed by such board in any case and
at any time for that purpose in lieu of the secretary.

Execution of
deeds.

105. The education board and the charities board may
respectively receive donations or endowments for any of the pur-
poses of this Order in so far as applicable to them respectively
and may also receive donations or endowments for any special
objects which shall not be inconsistent with or calculated to

Donations
endowments
&c. may be
received.

A.D. 1909. — impede the due working of the provisions of this Order and may hold exercise administer and fulfil any trusts which may be confided to them and further the education board and the charities board may respectively enter into agreements with any persons who are the managers of other schools or institutions in the City of Edinburgh or the administrators of any charity or benevolent institution within the said city and who have power to enter into such agreements for the transfer of such schools or institutions or of the administration of such schools or institutions or the administration of such charity or benevolent institution as the case may be to such board.

Joint committee.

106. The education board and the charities board may from time to time join with the master treasurer and assistants of the Merchant Company and the trustees of the widows' fund of the Merchant Company in appointing a joint committee of the members of the said respective boards and the master treasurer and assistants of the Merchant Company and the trustees of the said widows' fund for the purposes herein-after in this section mentioned which joint committee may act for the purpose of transacting and disposing of any business of a description common to the said boards the Merchant Company and the said widows' fund including—

- (1) Expenses of management and the allocation of these expenses among the said boards and the Merchant Company and the said widows' fund;
- (2) Contracts for the supply of stationery coal and other articles and contracts for the execution of printing lithographing and other works;
- (3) The apportionment of the accommodation required for the various official departments in the offices of the Merchant Company;
- (4) The appointment suspension and dismissal of clerks and apprentices in the said offices;
- (5) The terms of the appointment of any officers appointed or to be appointed and as to any alterations considered necessary in making a new appointment;
- (6) The rate of interest to be charged and paid from time to time on loans granted by any one of the Merchant Company the said widows' fund or the said boards

respectively to any other of the Merchant Company the widows' fund or the said boards respectively or granted from any of the funds under the management of either of the said boards to any other of such funds;

A.D. 1909.

- (7) Reports upon all other matters which may be remitted to the joint committee:

And any such joint committee which may be appointed may make such rules and orders for conducting the business of the said committee (not inconsistent with the provisions of this Order or of the Act of 1898) as they may deem expedient.

107. The provisions of this Order shall apply and have effect according to the true intent and meaning thereof notwithstanding the provisions of any Acts charters contracts deeds statutes and rules relating to the educational endowments the charitable endowments and the superannuation fund transferred by this Order respectively to the contrary.

Application of provisions of Order.

108. The education board and the charities board may respectively make such rules and orders for the regulation of the affairs of the educational endowments and the charitable endowments managed and administered by them respectively not inconsistent with the provisions of this Order as they may deem expedient and may from time to time rescind alter extend or vary such rules and orders or any part or parts thereof.

Boards may make rules.

109. From and after the appointed day the master of the Merchant Company as chairman of the education board shall in room and place of the preses of the governors of the Merchant Maiden Hospital be a trustee of the harbours of Peterhead and chairman of the trustees of the said harbours in accordance with the provisions in that behalf of the Peterhead Harbours Act 1873 and the said Act is hereby amended accordingly.

Chairman of education board to be trustee &c. of Peterhead harbours.

110. From and after the appointed day the master of the Merchant Company as chairman of the education board shall in room and place of the preses of the governors of the Merchant Maiden Hospital be a trustee and a member of the committee of managers of the feuars of the town of Peterhead and chairman of the trustees and committee of managers of the said feuars.

Chairman of education board to be trustee &c. of Peterhead feuars.

A.D. 1909.

Chairman of
education
board to be
trustee of
Bathgate
Academy.

111. From and after the appointed day the master of the Merchant Company as chairman of the education board shall in room and place of one of the governors of Daniel Stewart's Hospital be a trustee of the Bathgate Academy in accordance with the provisions in that behalf of the Bathgate Academy Provisional Order granted under the provisions of the Endowed Institutions (Scotland) Act 1869 and the said Order is hereby amended accordingly.

Costs of
Order.

112. The costs charges and expenses of preparing for obtaining and confirming this Order and incident thereto shall be paid to the extent of seventeen-twentieth parts out of the funds of the educational endowments and to the extent of three-twentieth parts out of the funds of the charitable endowments.

[9 EDW. 7.]

Edinburgh Merchant Company
Endowments Order Confirmation Act, 1909.

[Ch. cxi.]

SCHEDULES.

A.D. 1909.

SCHEDULE A.

REPEAL OF ACTS ORDERS AND SCHEMES.

Act Order or Scheme.	Title of Act Order or Scheme.	Extent of Repeal.
Provisional Order dated 3rd June 1870 issued in terms of the Endowed Institutions (Scotland) Act 1869.	For the administration of the Merchant Maiden Hospital.	The whole Order.
Scheme approved by Order in Council dated 17th November 1888 under the Educational Endowments (Scotland) Act 1882.	For the administration of the Merchant Maiden Hospital.	The whole Scheme.
Act 15 Vict. c. 7. - -	An Act to explain and amend the powers of the governors of the hospital in Edinburgh founded by George Watson merchant burghess of Edinburgh.	The whole Act.
Provisional Order dated 3rd June 1870 issued in terms of the Endowed Institutions (Scotland) Act 1869.	For the administration of George Watson's Hospital.	The whole Order.
Scheme approved by Order in Council dated 17th November 1888 under the Educational Endowments (Scotland) Act 1882.	For the administration of George Watson's Hospital.	The whole Scheme.
23 & 24 Vict. c. 2 - -	An Act to incorporate the governors of the hospital in Edinburgh founded by Daniel Stewart and to amend and explain his trust-settlement.	The whole Act.
Provisional Order dated 3rd June 1870 issued in terms of the Endowed Institutions (Scotland) Act 1869.	For the administration of Daniel Stewart's Hospital.	The whole Order.

A.D. 1909.

Act Order or Scheme.	Title of Act Order or Scheme.	Extent of Repeal.
Scheme approved by Order in Council dated 17th November 1888 under the Educational Endowments (Scotland) Act 1882.	For the administration of Daniel Stewart's Hospital.	The whole Scheme.
Provisional Order dated 3rd June 1870 issued in terms of the Endowed Institutions (Scotland) Act 1869.	For the administration of James Gillespie's Hospital and Free School.	The whole Order.
Scheme approved by Order in Council dated 17th November 1888 under the Educational Endowments (Scotland) Act 1882.	For the administration of James Gillespie's Hospital and Free School.	The whole Scheme.
Act 58 Vict. c. xii.	The Edinburgh Merchant Company Endowments Act 1895.	The whole Act.
Act 61 Vict. c. xxii.	The Edinburgh Merchant Company Act 1898.	Sections 92 to 103 ; section 104 so far as it relates to George Grindlay's Endowment and William Watherston's Endowment ; sections 106 to 112 in so far as these relate to George Grindlay's Endowment and William Watherston's Endowment and section 113 so far as it relates to George Grindlay's Endowment William Watherston's Endowment the Merchant Maiden Hospital George Watson's Hospital James Gillespie's Hospital and Free School Daniel Stewart's Hospital and the Merchant Company Endowments Board.

[9 EDW. 7.] *Edinburgh Merchant Company* [Ch. cxi.]
Endowments Order Confirmation Act, 1909.

SCHEDULE B.

A.D. 1909.

ROLL of PATRONS having the RIGHT of PRESENTATION of GIRLS to
the FOUNDATION of the MERCHANT MAIDEN HOSPITAL.

Date of Founda- tion.	Name of Mortification.	Names of Patrons.	Number of Pre- senta- tions.
1698 & 1722	Edinburgh Merchant Company's	Edinburgh Merchant Company -	10
1717	George Watson's - -	Edinburgh Merchant Company -	3
1698	Mary Erskine's - - -	Earl of Mar - - -	4
1698	Duchess of Hamilton's -	Trustees of the Duke of Hamilton	1
1704	Countess of Sutherland's -	Earl of Home - - -	1
1708	The Ministers of Edinburgh Leith Canongate and West Kirk's.	The Ministers of Edinburgh Leith Canongate and West Kirk.	2
1708	Trustees of the late Sir Thomas Moncreiffe of Moncreiffe Bart.	Sir Robert D. Moncreiffe Bart. as Mandatory.	1
1708	Bailie Warrender's - -	Trustees of the late Sir George Warrender of Lochend Bart.	1
1708	Countess of Stair's - -	Marquis of Bute - - -	1
1711	George Lockhart of Carnwath's	Sir Simon Macdonald Lockhart of Lee and Carnwath Bart.	1
1712	Thomas Wilkie's - - -	Kirk - Session of Canongate Church and Parish Edinburgh.	1
1711 & 1721	Thomas Fisher's - - -	Magistrates and Town Council of Edinburgh.	1
1727	William Brown of Dalgowrie's	Miss Edith Christian Broun Baird Heiress of Tailzie and Provision to the Estate of Coalston.	1
1729	Roger Hog's - - -	Sir Archibald Buchan Hepburn Bart. as sole Trustee of the late Lady Mary Buchan Hepburn.	1
1732	Robert Murray's - - -	The Edinburgh Booksellers' Society Limited.	1
1732	Colonel Blackader's - -	Alexander Glen New Court Temple London E.C.	1
1734	Provost Wightman's - -	Charles Andrew Wilson Genoa and John Aitchison Monk- wood Kilgraston Road Edin- burgh.	1
1776	Janet Callender's - - -	Incorporation of Skinners Edin- burgh.	1
			33

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